REQUEST FOR REGULATORY REVIEW

Hort Innovation governance, vendor-neutrality and the levy-funded validation of physical weed technologies (MT25014)

To	The Secretary, Department of Agriculture, Fisheries and Forestry – for referral to the team responsible for RDC performance and Hort Innovation's Statutory Funding Agreement
From	Christopher W. Laudando, President & Founder, Laudando & Associates LLC
Date	2 September 2026
Submission channel	DAFF online inquiry and/or GPO Box 858, Canberra ACT 2601
Status	Formal submission

Nature of submission: This is a governance and funding-accountability referral. It does not ask DAFF to decide patent infringement, resolve a private commercial dispute, or accept an allegation of corruption. It asks DAFF to examine whether the safeguards surrounding publicly matched, levy-funded technology validation are adequate and operating as represented.

Suggested transmittal message

Please treat the attached as supplementary information relevant to DAFF's ongoing oversight of Horticulture Innovation Australia Limited under the 2025–2034 Statutory Funding Agreement. I request acknowledgment, preservation of responsive records, referral to the responsible RDC-performance team, and written advice identifying what review or assurance steps DAFF will take.

Executive summary

Hort Innovation and Queensland DPI have launched MT25014, a three-year vegetable- and onion-levy-funded project intended to independently benchmark physical weed-control technologies and generate decision-ready evidence for growers. Queensland has publicly named Western Growers Association as an international partner; DPI separately describes Western Growers as providing an extensive global network of agricultural technology manufacturers.

That role creates an unresolved governance issue. At the publicly funded Gatton AgTech Showcase on 15–16 October 2025, I allege that Western Growers' Senior Commercialization Director, Ben Palone,

entered L&A's booth and told Australian grower prospects that the L&Aser could "blind a bus full of kids." The allegation is capable of verification through direct witnesses and contemporaneous communications. L&A is not aware of any technical inspection, documented risk assessment, fair opportunity to respond, correction to growers, or transparent review of the incident.

Western Growers also publicly developed and promotes a Carbon Robotics case study. That activity is not improper by itself. The concern is whether a party with a documented promotional relationship to one supplier, and an alleged history of making an extreme adverse safety representation about another supplier, should influence candidate identification, selection, evaluation, grower introductions or communications in an "independent" levy-funded validation gateway without robust disclosure, recusal and external oversight.

The issue is now urgent because Queensland and California have also announced a five-year cooperation framework expressly covering AgTech research, technology demonstrations, commercialisation, industry engagement and market access. Vendor-neutrality in the institutions that mediate that corridor is therefore a current public-interest question, not merely a retrospective grievance.

Complainant and affected technology

- **Complainant:** Christopher W. Laudando, President and Founder of Laudando & Associates LLC, a small engineering and AgTech business based in Chico, California.
- **Contact:** chris@laudando.com
- **Technology:** L&Aser, a differentiated photonic crop-protection and physical weed-control platform developed and fielded by L&A.
- **Australian participation:** L&A exhibited L&Aser at the 2025 Gatton AgTech Showcase and subsequently pursued Australian grower trials and market entry.
- **Present effect:** L&A states that it has withdrawn from Australian commercial activity after patent litigation and related demands caused Australian hardware to be collected for destruction without an Australian merits judgment identified by L&A. Supporting court and disposition records should be provided as E7.

Public funding and accountability context

DAFF states that industry-owned RDCs are accountable to industry and government; current statutory funding agreements run from 2025 to 2034 and contain requirements for performance, transparency and accountability to levy payers, government and the public. DAFF identifies five performance principles: stakeholder engagement; a strategic, collaborative and balanced R&D portfolio directed to profitability, productivity, competitiveness and preparedness; collaboration; governance aligned with open, transparent and proper use of funds; and monitoring and evaluation.

Queensland's 27 August announcement states that MT25014 is led by DPI, funded by Hort Innovation through industry levies, and brings together Western Growers, Reservoir Farms and Cornell University. The tender advertisement describes a structured validation gateway that independently benchmarks

technologies and enables objective comparison. Those public representations make independence, supplier access and conflict management central features of the project—not peripheral preferences.

Chronology requiring review

Date	Event	Relevance
15–16 Oct 2025	Gatton AgTech Showcase	Publicly supported event designed to connect growers directly with global technology suppliers. L&A exhibited L&Aser.
During showcase	Alleged safety statement	Direct witnesses can address the alleged “blind a bus full of kids” statement, its audience, context and commercial effect.
2025–2026	Institutional response	L&A seeks disclosure of any DPI/Hort Innovation complaint, risk, incident, partner-management or corrective-action records.
30 Apr 2026	MT25014 tender closed	Tender advertised independent benchmarking, objective comparison and a defined portfolio of global and domestic technologies.
27 Aug 2026	MT25014 publicly launched	DPI named lead; Western Growers named international partner; project funded through vegetable and onion levies.
Aug 2026	Public podcast	Western Growers representatives publicly promoted Carbon’s results while also calling for more laser-weeding competition.
2 Sep 2026	California–Queensland agreement	Five-year framework covers demonstrations, commercialisation, industry engagement and market access.

Questions for DAFF oversight

1. What assurance has Hort Innovation provided that candidate identification and access under MT25014 are vendor-neutral?
2. What written roles do Western Growers and Reservoir Farms have in candidate sourcing, shortlisting, protocol design, trials, scoring, communications and grower introductions?

3. Were relationships between project partners and particular technology vendors disclosed during procurement, contracting or project mobilisation?
4. Did Hort Innovation know of the Gatton allegation before Western Growers was included in MT25014, and if so, what review was undertaken?
5. What actual, potential or perceived conflicts were identified, and what recusal or independent-review arrangements apply?
6. Can private patent litigation, without a final merits judgment, operate in practice as an unpublished eligibility bar for a publicly funded validation project?
7. Will eligibility criteria, candidate-selection methodology, protocols, raw or sufficiently granular results, exclusions and reasons be published?
8. How will vendors be permitted to correct factual errors and challenge methodology before adverse findings are communicated to growers?
9. How will DAFF test whether the project delivers a balanced portfolio and demonstrable benefit to levy payers rather than reinforcing an incumbent narrative?

Requested action

1. **Refer and record.** Register this submission as information relevant to DAFF's oversight of Hort Innovation and refer it to the responsible RDC-performance and horticulture teams.
2. **Preserve records.** Request preservation of responsive DAFF/Hort Innovation records concerning L&A, L&Aser, Carbon Robotics, Western Growers, Ben Palone, Gatton, AS20007 and MT25014.
3. **Obtain written assurances.** Ask Hort Innovation to identify partner roles, selection authority, criteria, conflict declarations, recusal arrangements, complaint handling and publication commitments.
4. **Independent review.** Require a reviewer with no involvement in the relevant project chain to assess whether the Gatton allegation was raised, investigated and appropriately managed before the partnership expanded.
5. **Interim safeguard.** Pending review, ensure Western Growers does not participate in any decision, recommendation or communication specifically concerning L&A/L&Aser eligibility or evaluation.
6. **Performance framework.** Consider the matter in annual performance engagement and any independent performance review under the Statutory Funding Agreement.
7. **Reasons and referral.** Provide a written response identifying DAFF's jurisdiction and action; if any aspect belongs elsewhere, refer it with notice to L&A rather than closing it as a private dispute.

Fairness and confidentiality

L&A asks that the named organisations and individuals be given a fair opportunity to respond. L&A will correct any factual assertion shown to be wrong. Witness identities and legally privileged material should not be disclosed beyond what is necessary without prior consultation. Nothing in this submission asks DAFF to infer motive from the Sacramento photograph or from social-media profile activity.

Evidence schedule

The following items should accompany or follow the submission. Items marked "available from complainant" are not represented here as independently verified public facts.

Item	Evidence	Status / purpose
E1	Direct witness statements identifying who heard the Gatton safety representation, the exact words used, date, place and subsequent commercial effect.	Available from complainant; obtain signed, uncoached statements.
E2	Contemporaneous emails/messages with Hort Innovation, DPI, event organisers, growers or integrators following the Gatton incident.	Available from complainant; attach complete threads with metadata.
E3	Gatton exhibitor records, photographs and program materials showing L&Aser participation on 15–16 October 2025.	Public materials plus complainant records.
E4	AUSVEG podcast recording and timestamped transcript of Western Growers' statements regarding laser-weeding competition and Carbon Robotics.	Public recording; preserve locally.
E5	Western Growers' Carbon Robotics case study and related public promotional material.	Public source; relevance is relationship/context, not wrongdoing by itself.
E6	MT25014 tender, contract/scope, partner roles, candidate-selection criteria, conflict declarations, protocols and records.	Requested from Hort Innovation/DPI; core institutional evidence.
E7	Australian patent-litigation originating process, pre-action demands, evidence regarding collection/disposition of L&Aser modules, and proof of market withdrawal.	Available from complainant; confidential legal review recommended before filing publicly.
E8	Western Growers announcement and Queensland Government release concerning the five-year California–Queensland framework.	Public source; screenshot attached as Annexure A.
E9	Grower communications showing independent market perception and any changed purchase/trial decisions.	Available from complainant; obtain consent and redact personal data unless needed.

Public sources

Accessed 2 September 2026. Hyperlinks are provided for verification; the attached image is reproduced separately as an annexure.

1. Queensland Government, “International collaboration signals new weapons in the war on weeds” (27 Aug 2026)
2. Queensland Government, “Trade Mission secures primary industries innovation agreement with Californian Government” (2 Sep 2026)
3. Queensland DPI, Gatton Smart Farm – programs and partners, including MT25014 and Western Growers
4. AUSVEG, “Gatton AgTech Showcase judged a success” (9 Dec 2025)
5. AUSVEG, 2025 Gatton Showcase announcement and stated purpose
6. Hort Innovation tender advertisement, MT25014 – independent benchmarking and objective comparison
7. DAFF, Research and development corporations – funding agreements and five performance principles
8. Hort Innovation, corporate governance and Funding Agreement 2025–2034
9. Western Growers, Innovation Case Studies – Carbon Robotics case study
10. AUSVEG Vegalogue, “R&D: Part 2 Farming automation and technology” – Western Growers discussion (17 Aug 2026)

Annexure A – Western Growers announcement

Screenshot supplied by the complainant. It records Western Growers' public statement that its Senior Commercialization Director joined the Queensland Premier at the Sacramento signing ceremony for a five-year California–Queensland framework on agricultural innovation, biotechnology and productivity.

